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[TENTATIVE] ORDER RE: GENERAL MOTORS

LLC'S MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Moving Party: Defendant, General Motors LLC

Opposing Party: Plaintiff, Jose Salazar

Notice: OK

Background Facts

Plaintiff Jose Salazar

("Plaintiff") sues Defendant General Motors LLC ("Defendant") and Does 1 through 20, inclusive, pursuant to a September 23, 2025, Complaint alleging claims of breach of implied warranty of merchantability under the Song-Beverly Consumer Warranty Act ("Song-Beverly Act") and breach of express warranty under the Song-Beverly Act.

Now before the Court is Defendant's opposed motion for summary judgment or, in the alternative, summary adjudication of the Complaint's two causes of action.

Motion for Summary

Judgment or, in the Alternative, Summary Adjudication

a.

Legal Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication “is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact.” (*Id.* at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (*Id.* at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (*Ibid.*) “[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (*Cheal v. El Camino Hospital* (2014) 223 Cal.App.4th 736, 760.)

b. Discussion

Defendant's moving papers make a single argument for summary judgment or adjudication of the claims alleged in the Complaint: Plaintiff presented the Subject Vehicle to an authorized GM facility for only one warranty-related repair, which, under well established law, cannot support a breach of warranty claim under the Song-Beverly Act, because such warranty claims require that the plaintiff provide the manufacturer with a reasonable number of opportunities to repair the vehicle under warranty, and here, Defendant presents evidence to show Plaintiff only presented the vehicle for a single repair visit. (Motion, pp. 5-6.)

In legal support of this position, Defendant points to *Krieger v. Nick Alexander Imports* (1991) 234 Cal.App.3d 205, 213, and other authorities to support the position that California authorities hold that more than one repair visit is necessary to support breach of warranty claims under the Song-Beverly Act. (Motion, pp. 5-6.)

In factual support of this position, Defendant points to Undisputed Material Fact ("UMF") No. 6, which stands for the proposition that Plaintiff presented the subject vehicle for only one repair under warranty: an engine replacement on July 7, 2025. In turn, UMF No. 6 is supported by documents showing a single repair order at Casa De Cadillac Buick GMC Sherman Oaks, and a passage of Plaintiff's deposition. (Motion, Separate Statement, UMF No. 6, citing Motion, Jensen Decl., Exs. C, D [repair order] & Motion, Roybal Decl., Ex. E at pp. 28-33 [deposition transcript excerpt].)

The record fails to reflect that Plaintiff objected to this evidence or any evidence advanced by Defendant in support of summary judgment or summary adjudication.

For ease of discussion, the Court discusses Defendant's arguments in relation to each respective cause of action, mixing its summary judgment and adjudication discussions together.

i.

First Cause of Action, Breach of Implied Warranty

Defendant's argument fails in

relation to the first cause of action, both on summary judgment and on summary adjudication.

Defendant's sole argument on summary judgment and adjudication against the first cause of action is that an implied breach of warranty of merchantability claim under the Song-Beverly Act requires presentation of the subject vehicle for repair. (Motion, pp. 5-6, 6-7.)

However, California law is clear.

As directly quoted from *Carver v. Volkswagen Grp. of Am., Inc.* (Dec. 26, 2024) 107 Cal.App.5th 864, 878,

A fundamental

difference between an express warranty claim and an implied warranty of merchantability claim is that before bringing an express warranty claim under the Act, the plaintiff must present the defective vehicle to an authorized representative of the manufacturer for repair and give the manufacturer a reasonable opportunity to fix the vehicle. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 152, 158 Cal.Rptr.3d 180 [(Donlen)]; *Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 407, 7 Cal.Rptr.3d 546 [(Mocek)] [if "an express warranty is breached, the Act sets out an extensive scheme requiring manufacturers to repair (Civ. Code, § 1793.2), and the buyer has a concomitant duty to allow a reasonable number of opportunities for repair before it can demand a replacement of the goods or reimbursement"].) If the vehicle cannot be repaired, the manufacturer must offer to replace or repurchase the vehicle from the consumer. (§ 1793.2, subd. (d).) However, this aspect of the Act "does not apply to the breach of an implied warranty of merchantability." (*Mocek*, at p. 407, 7 Cal.Rptr.3d 546.) Because the defects involved in an implied warranty of merchantability are so fundamental, "the buyer is not required to await a seller's attempt to make repairs." (*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1548, 173 Cal.Rptr.3d 454 (*Brand*); § 1794, subd. (a).)

Based on the clear authority in *Carver*, which is drawn from a line of authority going back to *Mocek* and confirmed again in cases such as *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1307 (cited in Plaintiff's opposition), Defendant's argument fails as to the first cause of action.

Summary judgment is accordingly

DENIED because not all theories for liability have been negated here, i.e., the implied breach of warranty claim. (Lopez v. Superior Court (1996) 45 Cal.App.4th 705, 714; see Johnson v. Chui (2011) 199 Cal.App.4th 775, 778 ["[A] defendant is entitled to summary judgment only when all theories of liability have been negated".])

Summary adjudication of the first

cause of action is likewise DENIED given that Defendant's argument in support of summary adjudication of the first cause of action is identical to the argument in support of summary judgment of the same. (Motion, pp. 6-7.)

ii.

Second Cause of Action, Breach of Express
Warranty

The Court thus only proceeds with a discussion of summary adjudication of the second cause of action for breach of express warranty under the Song-Beverly Act.

A buyer must prove four elements to succeed on a claim for breach of an express warranty for a vehicle under the Song-Beverly Act: (1) the vehicle had a defect or nonconformity covered by a written warranty that substantially impaired the vehicle's use, value, or safety to a reasonable person (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer for repair (the presentation element); (3) the manufacturer or its authorized repair facility did not repair the defect after a reasonable number of repair attempts (the failure-to-repair element); and (4) the manufacturer did not promptly replace or repurchase the vehicle (the failure-to-replace-or-repurchase element). (Carver, supra, 107 Cal.App.5th at p. 879.)

Here, for purposes of summary adjudication, Defendant is correct in arguing that for breach of express warranty claims, the Song-Beverly Act "give[s] recourse to the buyer of a new automobile that suffers from the same defect repeatedly, or is out of service for cumulative repairs for an extended period." (Krotin v. Porsche Cars North America, Inc. (1995) 38 Cal.App.4th 294, 301.) "[A]t a minimum, there must be more than one opportunity to fix the nonconformity." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 799, citing Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208.)

“Nonconformity” connotes one, or the same nonconformity. (See Civ. Code § 1793.22, subd. (e)(1) [“nonconformity” is “nonconformity which substantially impairs the use, value, or safety of the new motor vehicle to the buyer or lessee”]; see, e.g., *Oregel v. American Isuzu Motors, Inc.*, (2001) 90 Cal.App.4th 1094, 1103-1104 [six attempts to fix same oil leak] (*Oregel*); *Robertson*, supra, at p. 800 [several attempts to fix same water leak].)

A review of Defendant’s evidence shows testimony from Plaintiff to the effect that before the July 2025 repair visit related to the subject vehicle, he had no issues with the subject vehicle, and that since the visit, he has driven it without any issues, even if Plaintiff testified that who knows what may happen in the future. (Motion, *Jensen Decl.*, Exs. C, D [repair order] & Motion, *Roybal Decl.*, Ex. E at pp. 28-33 [deposition transcript excerpt].)

Defendant’s evidence establishes that Plaintiff afforded Defendant only one opportunity to repair the alleged nonconformity. Because proof that the manufacturer was afforded a reasonable number of opportunities to repair is an essential element of a Song-Beverly express warranty claim, Defendant has negated an essential element of that claim and therefore satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (p)(2). The burden accordingly shifts to Plaintiff to demonstrate the existence of a triable issue of material fact.

In opposition, Plaintiff argues that even though Plaintiff only presented the subject vehicle for one repair visit, there is still an express breach of contract because evidence exists to show that in May 2025, Defendant circulated internal memoranda showing the engine in Plaintiff’s vehicle was defective and that the defect was not then repairable and no repair attempts should be made, and that in July 2025, Plaintiff’s vehicle stalled on the freeway, with the vehicle towed to a Defendant-affiliated repair facility, where the engine was replaced. (Opposition, p. 7, citing Opposition, Separate Statement, Additional Material Facts (“AMF”) Nos. 2-3.)

In reply, Defendant argues that Plaintiff has not addressed the presentation requirement’s need to have more than one attempt at repair and that Plaintiff’s arguments merely attempt to create triable issues of fact under circumstances where the presentation

requirement is just not met. (Reply, pp. 6-7.)

The Court agrees with Defendant and determines that Plaintiff has failed to meet his burden on summary adjudication vis-à-vis the second cause of action. Plaintiff has not presented evidence to show more than the single repair visit in July 2025, and “at a minimum, there must be more than one opportunity to fix the nonconformity.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 799, citing Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208.) The single visit here does meet that standard here on summary adjudication. (Cf. Oregel, supra, 90 Cal.App.4th at pp. 1103-1104 [six attempts to fix same oil leak]; Robertson, supra, 144 Cal.App.4th 785 at p. 800 [several attempts to fix same water leak].)

Summary adjudication of the second cause of action is thus GRANTED.

c. Conclusion

Defendant General Motors LLC’s motion for summary judgment or, in the alternative, summary adjudication, is:

(1) DENIED

as to summary judgment of the Complaint’s causes of action;

(2) DENIED

as to summary adjudication of the Complaint’s first cause of action; and

(3) GRANTED

as to summary adjudication of the Complaint’s second cause of action.

Defendant General Motors LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party

submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.